

A final example to show that misquotation is nothing to do with open licensing

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In [a previous piece](#), I noted in defence of Creative Commons licenses that “Whether a work is openly licensed or not does not affect whether people can or will write things that are not true”. In that piece, I focused on the fact that legal redress seems to remain available under a CC BY license. Here, I want to briefly cover the other side: work that isn’t openly licensed but that still gets misquoted.

I was prompted to think about this as I read [Stewart Lee’s hilarious Guardian column](#) this morning. Lee is referring here to the ridiculous misquoting of Jeremy Corbyn by the tabloid press. What Corbyn said (about the death of Osama Bin Laden) was that there was “no attempt whatsoever that I can see to arrest him and put him on trial, to go through that process”. Corbyn said: “This was an assassination attempt, and is yet another tragedy, upon a tragedy, upon a tragedy”. His point was that if the West wants to take the moral high ground of law, then it cannot simply revert to summary executions, which is a reasonable enough statement. In fact, it’s exactly what [Boris Johnson also said](#): “He should be put on trial, because a trial would be the profoundest and most eloquent statement of the difference between our values and his”.

But no, Corbyn was misquoted in the press. And it’s exactly the type of misquoting that researchers are claiming will happen under CC licenses; a de-contextualisation. As Lee puts it:

“Had Corbyn really said the death of Bin Laden was a ‘tragedy?’” asked a painter. “Not really,” offered a young woman tapping at an iPhone. It appeared the veteran leftwinger had used those words, but as part of a forward moving collection of sentences, which contextualised them in the way that sentences in a supporting argument do, in order to lament the lack of due process in Bin Laden’s killing, which Corbyn believed, rightly or wrongly, had ongoing global implications.

Anyone familiar with human language, such as a baby, a dolphin, or a cleverer than average dog, would have experienced such a syntactical procedure before, perhaps involving nouns and verbs and various qualifying phrases.

Only by decontextualising these words entirely were the Mail, the Express, the Telegraph and the actual genuine leader of the Liberal Democrats, Tim Farron, able to misrepresent Corbyn so absurdly.

This happens all the time and you’re hardly afforded any extra protection with open speech and the press than if you write an article and it’s openly licensed.